Regulation 12
Ozone-depleting substances

1 This regulation does not apply to permanently sealed equipment where there are no refrigerant charging connections or potentially removable components containing ozone-depleting substances.

2 Subject to the provisions of regulation 3.1, any deliberate emissions of ozone-depleting substances shall be prohibited. Deliberate emissions include emissions occurring in the course of maintaining, servicing, repairing or disposing of systems or equipment, except that deliberate emissions do not include minimal releases associated with the recapture or recycling of an ozone-depleting substance. Emissions arising from leaks of

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SOURCE: MEPC.328%2876%29.pdf
equipment, except that deliberate emissions do not include minimal releases associated with the recapture or recycling of an ozone-depleting substance. Emissions arising from leaks of an ozone-depleting substance, whether or not the leaks are deliberate, may be regulated by Parties.

3.1 Installations that contain ozone -depleting substances, other than hydrochlorofluorocarbons, shall be prohibited:

.1 on ships constructed on or after 19 May 2005; or

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 20 -

.2 in the case of ships constructed before 19 May 2005 which have a contractual delivery date of the equipment to the ship on or after 19 May 2005 or, in the absence of a contractual delivery date, the actual delivery of the equipment to the ship on or after 19 May 2005.

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or, in the absence of a contractual delivery date, the actual delivery of the equipment to the ship on or after 19 May 2005.

3.2 Installations that contain hydrochlorofluorocarbons shall be prohibited:

.1 on ships constructed on or after 1 January 2020; or

.2 in the case of ships constructed before 1 January 2020 which have a contractual delivery date of the equipment to the ship on or after 1 January 2020 or, in the absence of a contractual delivery date, the actual delivery of the equipment to the ship on or after 1 January 2020.

4 The substances referred to in this regulation, and equipment containing such substances, shall be delivered to appropriate reception facilities when removed from ships.

5 Each ship subject to regulation 6.1 shall maintain a list of equipment containin g ozone-depleting substances.

6 Each ship subject to regulation 6.1 that has rechargeable systems that contain

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5 Each ship subject to regulation 6.1 shall maintain a list of equipment containin g ozone-depleting substances.

6 Each ship subject to regulation 6.1 that has rechargeable systems that contain ozone-depleting substances shall maintain an ozone -depleting substances record book. This record book may form part of an existing logbook or electronic record book as approved by the Administration. An electronic recording system referred to in regulation 12.6, as adopted by resolution MEPC.176(58), shall be considered an electronic record book, provided the electronic recording syst em is approved by the Administration on or before the first IAPP Certificate renewal survey carried out on or after 1 October 2020, but not later than 1 October 2025, taking into account the guidelines developed by the Organization.

7 Entries in the ozone-depleting substances record book shall be recorded in terms of

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than 1 October 2025, taking into account the guidelines developed by the Organization.

7 Entries in the ozone-depleting substances record book shall be recorded in terms of mass (kg) of substance and shall be completed without delay on each occasion, in respect of the following:

.1 recharge, full or partial, of equipment containing ozone -depleting substances;

.2 repair or maintenance of equipment containing ozone-depleting substances;

.3 discharge of ozone-depleting substances to the atmosphere:

.3.1 deliberate; and

.3.2 non-deliberate;

.4 discharge of ozone-depleting substances to land-based reception facilities; and

.5 supply of ozone-depleting substances to the ship.
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 21 -

Regulation 13
Nitrogen oxides (NOx)

Application

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SOURCE: MEPC.328%2876%29.pdf
INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 21 -

Regulation 13
Nitrogen oxides (NOx)

Application

1.1 This regulation shall apply to:

.1 each marine diesel engine with a power output of more than 130 kW installed on a ship; and

.2 each marine diesel engine with a power output of more than 130 kW that undergoes a major conversion on or after 1 January 2000 except when demonstrated to the satisfaction of the Administration that such engine is an identical replacement to the engine that it is replacing and is otherwise not covered under paragraph 1.1.1 of this regulation.

1.2 This regulation does not apply to:

.1 a marine diesel engine intended to be used solely for emergencies or solely to power any device or equipment intended to be used solely for emergencies on the ship on which it is installed, or a marine diesel engine

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to power any device or equipment intended to be used solely for emergencies on the ship on which it is installed, or a marine diesel engine installed in lifeboats intended to be used solely for emergencies; and

.2 a marine diesel engine installed on a ship solely engaged in voyages within waters subject to the sovereignty or jurisdiction of the State the flag of which the ship is entitled to fly, provided that such engine is subject to an alternative NOx control measure established by the Administration.

1.3 Notwithstanding the provisions of paragraph 1.1 of this regulation, the Administration may provide an exclusion from the application of this regulation for any marine diesel engine that is installed on a ship constructed, or for any marine diesel engine that undergoes a major conversion, before 19 May 2005, provided that the ship on which the engine is installed is solely engaged in voyages to ports or offshore terminals within the State the flag of which the

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conversion, before 19 May 2005, provided that the ship on which the engine is installed is solely engaged in voyages to ports or offshore terminals within the State the flag of which the ship is entitled to fly.

Major conversion

2.1 For the purpose of this regulation, major conversion means a modification on or after 1 January 2000 of a marine diesel engine that has not already been certified to the standards set forth in paragraph 3, 4 or 5.1.1 of this regulation where:

.1 the engine is replaced by a marine diesel engine or an additional marine diesel engine is installed, or

.2 any substantial modification, as defined in the revised NOx Technical Code 2008, is made to the engine, or

.3 the maximum continuous rating of the engine is increased by more than 10% compared to the maximum continuous rating of the original certification of the engine.

2.2 For a major conversion involving the replacement of a marine diesel engine with a

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compared to the maximum continuous rating of the original certification of